



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON OCTOBER 15, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Joseph H. Yap, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S.B. Member

ABSENT:

None

ORDINANCE NO. 2024-17

Introduced by Hon. Alice D. Emano and Hon. Joseph H. Yap Jr.

AN ORDINANCE INSTITUTIONALIZING THE COMMUNITY-BASED DRUG REHABILITATION PROGRAM (CBDRP) FOR PERSONS WHO USED DRUGS (PWUDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"

WHEREAS, His Excellency, President Rodrigo R, Duterte signed an Executive Order No. 66, series of 2018, institutionalizing the Philippine Anti-Illegal Drugs Strategy (PADS), a program that aims to boost government's ongoing anti-narcotics campaign;

WHEREAS, the PADS outlined efforts of the government to the government to strengthen its campaign against prohibited drugs and their precursors, and contribute to international efforts to counter the worldwide illegal drug problem;

WHEREAS, pursuant to the aforesaid Order, all government agencies and local government units were ordered to formulate and adopt drug-free workplace programs and conduct authorized drug testing among their officials and personnel and their constituents, to end the drug scourge in the country as the President's top priority;

WHEREAS, the Department of Health, one of the leading key government agencies working and facilitating the process of those Persons Who Uses Drugs (PWUDs) on drug clearing program required by the Government through joined tasked-government

agencies like Philippine Drug Enforcement Agency (PDEA), Department of Interior and Local Government (DILG), Department of Health (DOH), Philippine National Police (PNP), and others;

WHEREAS, the Department of Health has formulated its strategy to help process and facilitate the illegal drug victims to counter the rising numbers of drug surrenders as of this time where there were already hundreds of thousands of illegal drug users/pushers reliably reported that our Government has outnumbered the facilities to cater, thus the DOH has initiated already its mandate for the implementation of its strategy called, "Community-Based Rehabilitation Program";

NOW THEREFORE, BE IT ORDAINED by the Sangguniang Bayan of Prieto Diaz Sorsogon in session assembled, that:

ARTICLE 1

TITLE, SCOPE AND DEFINITION OF TERMS

SECTION 1. TITLE

This Ordinance shall be known as the COMMUNITY-BASED DRUG REHABILITATION PROGRAM (CBDRP) FOR PERSONS WHO USED DRUGS (PWUDs) IN THE MUNICIPALITY OF PRIETO DIAZ SORSOGON."

SECTION 2. SCOPE

The provisions of this ordinance shall apply to PWUDs who surrendered to the authorities in all barangays in the municipality of Prieto Diaz, Sorsogon.

SECTION 3. DEFINITION OF TERMS

For purposes of this ordinance, the following terms are hereby defined as:

- a. Community-Based Drug Rehabilitation Program (CBDRP) - refers to an integrated model for drug users with moderate risk for drug dependence and with mild severity of addiction. It provides continuum of care from outreach and low threshold services through active coordination among number of health, social, and other non-specialist services needed to meet client's needs. Moreover, it is composed of two core components name Community-based Treatment (CBT) and Community-based Support Services (CBSS)
- b. Community Rehabilitation Network (CRN) - is composed of CBRP- trained and practitioners in the medical and psycho-social fields
- c. Drug Personality – refers to individuals allegedly involved in illicit drug activities
- d. Municipal Anti-Drug Abuse Council (MADAC) – chaired by the Municipal Mayor, and is the lead council in CBDRP
- e. Persons Who Used Drugs (PWUDs) – refers to persons who used dangerous drugs by injecting intravenously or intramuscularly, or consuming, either by chewing, smoking, sniffing, eating, swallowing, drinking or otherwise introducing into the physiological system of the body
- f. Surrenderers – persons who submit themselves to interventions which may include PWUDs and other drug personalities

ARTICLE 2

BACKGROUND AND OBJECTIVE

SECTION 3. The Community-Based Drug Rehabilitation Program (CBDRP) is a holistic approach in rehabilitating the surrendered drug personalities and aims to focus on the healing of the body, mind, and soul through counseling and other therapeutic sessions.

According to statistics, 94% of the PWUDs are considered "low risk". Meaning, their level of drug addiction is relatively low and may not be accepted in conventional rehabilitation facilities. They also need different kinds of interventions, thus, the CBDRP was conceptualized.

The CBDRP will be facilitated by network of trained CBRP implementers in the community called the Community Rehabilitation Network (CRN). The CRN is composed of CBDRP- trained and practitioners in the medical and psycho-social fields. The members of CRN may be medical doctors, psychologist, psychiatrist, guidance counselors, teachers, members of the faith-based organizations, or anyone who is trained enough and able to facilitate the conduct of CBDRP.

Through the CBDRP, the PWUDs will be given a second chance in life. The stigma that has been associated with them will be removed. By accepting, nurturing and caring for them, they will choose to live drug-free life.

ARTICLE 3.

TURN-OVER OF SURRENDERERS TO COMMUNITY-BASED DRUG REHABILITATION PROGRAM

SECTION 4. PROCEDURES PRIOR TO THE ENROLMENT IN THE CBDRP

The procedures are the following:

1. The PWUDs shall undergo an initial screening to be conducted by the DOH or Municipal Health Office.
2. They will be classified as low-risk, mid-risk or high-risk.
3. The low-risk PWUDs will be further profiled by the DOH whether they should be turned to Community-Based Drug Rehabilitation Program or undergo an outpatient facility-based rehabilitation program.

ARTICLE 4

REHABILITATION PROCESS

SECTION 5. ORGANIZATION

a. The Community Rehabilitation Network (CRN) shall be organized by the Municipal Anti-Drug Abuse Council (MADAC). The CRN shall be composed of volunteers in the municipality.

b. Once convened, the CRN shall be oriented on their duties and responsibilities in the community- based rehabilitation program.

c. The CRN should strategize on how they would implement the CBDRP. The members should also design their rehabilitation program that would enable them to maximize the resources available in the community.

d. The design of their program should be flexible for all enrollees in the program. It should cater to the specific needs of the patients.

SECTION 6. ENROLLMENT TO THE PROGRAM

a. The PWUDs accompanied by their families, shall submit themselves to the Community Rehabilitation Network (CRN) for registration, assessment and recording.

b. They will fill out a Personal Data Sheet, which shall be recorded in a registry. This registry should be maintained by the members of the CRN for recording and monitoring purposes which should remain confidential.

c. The PWUDs and a family member shall sign a Condition of Admission or a Consent Form, Affidavit of Undertaking and Waiver agreeing that the patient will undergo this kind of treatment and that unannounced drug testing will be conducted within the rehabilitation process.

d. Once the patient has accomplished these steps, he/she must pledge his/her commitment to finish the rehabilitation program.

SECTION 7. ORIENTATION OF THE PROGRAM

a. A general orientation of the program will be given to both the patients and their families. They will be given an overview of the coverage of the rehabilitation program. The presence of the family is very important to make the patients feel that they will not be alone as they go through the process.

b. Once done with the general orientation, the patients will be given a more in-depth orientation of the program. The mechanics will be discussed and the expectation from the patients will be set.

c. Simultaneous to the patient's orientation, the families will also be oriented of what is expected from them. The Community Rehabilitation Network (CRN) must encourage the families to be the strongest support group of the patients during this time of needs.

SECTION 8. COMMUNITY-BASED DRUG REHABILITATION PROGRAM PROPER

a. The Community-Based Drug Rehabilitation Program (CBDRP) will run for eight (8) weeks or forty-eight (48) days and will be handled by the Community Rehabilitation Network (CRN) who may be composed of a team of experts such as Doctors, CBDRP Nurse Coordinator/ Focal Person, Psychologists/Psychiatrist, MSWDO and other community volunteers. Weekdays shall be dedicated for counseling/therapy sessions while weekends shall be dedicated for community service and religious services.

b. IMPLEMENTATION OF THE "CARE PROGRAMS"

Patient's Care

- Sessions involving the understanding of the individual patient
- Sharing of Experiences
- Lectures/Seminars on the effects of drug abuse, HIV/AIDS and the like

- Individual/Group counseling
- Physical Activities
- Community service

Family Care

- Counseling
- Family Care
- Parenting and family development programs

Community Care

- Community awareness seminars
- Recruitment of volunteers for the CRN
- Mobilization of the Basic Ecclesiastical Communities, Religious and Civic Organizations and other institutions
- "Adopt a Drug Patient where an individual and a family may serve as sponsors for the needs of the patients such as foods and other materials

SECTION 9. EVALUATION

After accomplishing the Care Programs, drug recovering patients will undergo an unannounced drug test. This is also the period where the patients will be assessed/evaluated on how well they fared with the activities done. Those with negative results shall be awarded the Certificate of Program Completion issued by the Community Rehabilitation Network (CRN).

ARTICLE 5 AFTERCARE

SECTION 10. After completing the intensive phase, the recovering drug dependent shall undergo a continuing Aftercare Program of not less than 6 months to be conducted by the concerned agencies (TESDA, DEPED/CHED, DSWD, PNP/PDEA, DOH/RHU, DTI). In this phase, they shall undergo programs which will help them and their families to be reintegrated back to their respective communities as God-fearing and productive individuals.

SECTION 11. IMPLEMENTING OFFICES

The Office of the Municipal Mayor through the Punong Barangays/BADAC Officers, shall spearhead the implementation of this ordinance and ensure the observance of procedures of the CBDRP. Other leading agencies/offices that would assist in the implementation of the ordinance are Municipal Health Office, Municipal Police Station, socio-civic organizations, religious organizations, Municipal Anti-Drug Abuse Council (MADAC), Barangay Anti- Drug Abuse Councils and other volunteers in the community.

SECTION 12. MANDATORY REHABILITATION

As deemed necessary, the Punong Barangay/BADAC Action Officer/ Municipal Police Station / CBDRP Board, (based on the report / investigation by the Municipal Health Office) may petition to the court seeking for an order for mandatory rehabilitation, on an out-patient basis of any PWUDs for appropriate action and intervention. This intervention will be for the welfare of the PWUDs, his family and the community as a whole.

SECTION 13. FUNDS/ BUDGETARY REQUIREMENT

The Local Government Unit of Prieto Diaz, Sorsogon shall allocate funds annually chargeable against CDBRP appropriation for the effective implementation of this ordinance in the amount of one hundred fifty thousand pesos (P 150,000.00), starting FY 2025 and every year thereafter.

SECTION 14. SUPPORT OF BARANGAY ANTI-DRUG ABUSE COUNCIL (BADAC)

The BADAC shall ensure active participation in the implementation of the program and shall recommend to the barangay council to appropriate substantial portion in their respective budget to assist or enhance the enforcement of this ordinance, giving priority to program advocacy, community awareness, preventive interventions and the rehabilitation or treatment and recovery of PWUDs.

SECTION 15. REPEALING CLAUSE

All ordinances, resolutions, rules and regulations which are inconsistent with the provisions of this ordinance are hereby repealed or amended accordingly.

SECTION 16. SEPARABILITY CLAUSE

If any provision of this Ordinance is declared unconstitutional, the same shall not affect the validity and effectivity of the other provisions hereof.

SECTION 17. EFFECTIVITY

This Ordinance shall take effect upon its completion of the posting requirement as provided for in the Local Government Code of 1991.

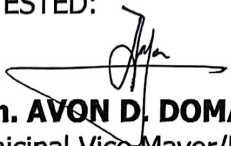
Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Dr. Jenifer Bernaldez, MHO, Municipal Health Office; Dr. Zara Jane R. Nate, Chief of Hospital, Prieto Diaz Medicare Hospital; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action.

DATE ENACTED: OCTOBER 15, 2024

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date signed: NOV 06 2024



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 125th REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON DECEMBER 02, 2024 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

JAN 07 2025

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation

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RESOLUTION NO. 598-2024

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2024-17, ENTITLED: "AN ORDINANCE INSTITUTIONALIZING THE COMMUNITY-BASED DRUG REHABILITATION PROGRAM (CBDRP) FOR PERSONS WHO USED DRUGS (PWUDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2024-17 for review and appropriate action;

WHEREAS, the ordinance aims to rehabilitate drug users through counselling and therapeutic sessions, and other related treatment processes;

WHEREAS, Prieto Diaz Ordinance No. 2024-17 is pursuant to Department of the Interior and Local Government Memorandum Circular No. 2018-125, dated August 8, 2018, as amended;

WHEREAS, the ordinance is authorized under Sections 16, 17(b)(2)(iv) and 447(a)(5)(xiv) of R.A. No. 7160, otherwise known as the Local Government Code of 1991. Therefore, it is *intra vires*;

NOW, THEREFORE, on motion of Hon. Roland R. Afionuevo, unanimously seconded, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2024-17, ENTITLED: "AN ORDINANCE INSTITUTIONALIZING THE COMMUNITY-BASED DRUG REHABILITATION PROGRAM (CBDRP) FOR PERSONS WHO USED DRUGS (PWUDs) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED UNANIMOUSLY.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRENIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer